

# Good Governance (Management and Operation) Act, 2008

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Good Governance (Management and Operation) Act, 2064

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Amending Acts

1. Some Nepal Acts Amendment Act, 2072 2072.11.13
2. Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075 2075.11.19
3. Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081 2081.02.18

Act Number 36 of the year 2064

An Act Made to Provide for Guaranteeing Good Governance

Preamble: Whereas it is necessary to make the public administration of the country people-oriented, accountable, transparent, inclusive and participatory and to provide its outcomes to the general public; to embrace the fundamental tenets of good governance such as rule of law, corruption-free and efficient administration, decentralization, financial discipline, and efficient management of public works and resources, and to create conditions where the general public receive the services they are entitled to in a fast, efficient and cost-effective manner; to implement and enforce the citizens' right to good governance in practice; and to transform the administrative mechanism into a service-providing mechanism and facilitator and make legal provisions regarding guaranteeing good governance in the country; the Legislature-Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Good Governance (Management and Operation) Act, 2064".
- (2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
  - (a) "Constitution" means the Constitution of Nepal amended by Some Nepal Acts Amendment Act, 2072..
  - (b) "Minister" means the Prime Minister, Deputy Prime Minister or Minister, and said word also refers to a Minister of State who holds the charge of a ministry independently.
  - (c) "Secretary" means the Secretary of a ministry, and said word also refers to the Chief Secretary of the Government of Nepal and other officers of the special class of the Government of Nepal performing functions equivalent to a Secretary.
  - (d) "Ministry" means a ministry of the Government of Nepal, and said word also refers to the Office of the

Prime Minister and Council of Ministers or a constitutional body or an office at the central level.

(e) "Head of Department" means the office holder working as the head of a department under any ministry or other office equivalent thereto.

(f) "Head of Office" means the office holder working as the head of any government office.

(g) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act. Added by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081.(ga) "Citizen App" means the Citizen App pursuant to Section 37A. Chapter-2 General Provisions Relating to Administration Operation

3.

Functions to be Performed at Various Levels: (1) The Government of Nepal shall, for the purpose of maintaining good governance in the country, perform administrative functions at the central level, amended by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075.the provincial level, the district level and the local level. (2) Pursuant to sub-section (1), amended by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075.the division of provinces and districts and the determination of the geographical area of local levels shall be according to the prevailing law. Added by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081.3A. Deemed to be Performed by the Government of Nepal: (1) Among the matters stated to be performed by the Government of Nepal in the prevailing law, the following matters shall be considered as performed by the Government of Nepal when they are performed by the Government of Nepal, the Council of Ministers, and for matters other than those, according to the Rules of Business of the Government of Nepal or as delegated by the Government of Nepal, by the concerned Minister or, as delegated by the Minister, by an officer of the special class of the Government of Nepal published in the Nepal Gazette:- (a) Matters stated to be performed by the Government of Nepal, the Council of Ministers in the prevailing law, (b) Matters required to be submitted to the Government of Nepal, the Council of Ministers according to the Rules of Business of the Government of Nepal, (c) Matters stated to be appealable to the Government of Nepal in the prevailing law. (2) If, in relation to any matter to be performed pursuant to sub-section (1), any other law or the Rules of Business of the Government of Nepal has assigned responsibility to an official, then no delegation of authority shall be required under this section to the extent such responsibility is assigned. 4.

Subject-Matter Ministries and Departments to Exist: (1) There shall be as many subject-matter ministries and departments as necessary for performing the functions of the central level of the Government of Nepal. (2) The number of ministries and their allocation of business shall be according to the Rules of Business of the Government of Nepal. (3) The Office of the Prime Minister and Council of Ministers shall be the principal administrative body of the Government of Nepal. (4) There may be as many departments, offices and bodies under a ministry as necessary. 5. May Constitute Necessary Bodies: (1) In addition to ministries, departments and offices for performing administrative functions, the Government of Nepal may, as necessary, constitute other secretariats, commissions, boards, centers, committees or other similar bodies. (2) The functions, duties, powers and other terms of reference of the secretariat, commission, board, center, committee or other similar body constituted pursuant to sub-section (1) shall be as prescribed by the Government of Nepal. 6. Basis for Conduct of Administrative Functions: For maintaining good governance in the country, while performing administrative functions under this Act or other prevailing law, the official performing such functions shall, in addition to the matters provided in the Constitution and other prevailing law, perform functions on the following basis:- (a) Greater interest of the nation and the people, (b) Coordination and

inclusion, (c) Rule of law, (d) Guarantee of human rights, (e) Transparency, objectivity, accountability and honesty, (f) Financial discipline and corruption-free, efficient and people-oriented administration, (g) Neutrality and impartiality of the administrative mechanism, (h) Access of the general public to the administrative mechanism and decisions, (i) Decentralization and delegation of authority, (j) Public participation and maximum utilization of local resources. 7. Policies Adopted by the Government of Nepal: (1) In addition to the policies provided in the Constitution and other prevailing law and policies adopted from time to time, the Government of Nepal shall adopt the following policies while performing the administrative functions of the country:- (a) Economic liberalization, (b) Poverty alleviation, (c) Social justice, (d) Sustainable and efficient management of natural and other public resources, (e) Women empowerment and development of gender justice, (f) Environmental protection, (g) Upliftment of ethnic groups, Dalits and economically and socially backward classes, (h) Development of remote areas and balanced regional development.

Added by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075.(1A) The provincial government, rural municipality executive or municipality executive shall, while performing its administrative functions, subject to the policies adopted by the Government of Nepal as referred to in sub-section (1), adopt necessary policies.

(2) The Government of Nepal shall, in order to implement the policies adopted pursuant to sub-section (1), added by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075.and the provincial government, rural municipality executive or municipality executive shall, in order to implement the policies adopted pursuant to sub-section (1A), conduct necessary programs and plans from time to time.

### Chapter-3

#### Conduct and Responsibility of Administrative Functions

8. Duty of Concerned Official to Maintain Good Governance: For the purpose of maintaining good governance in the country and providing its benefits to the general public in a timely manner, it shall be the duty of the concerned official to conduct or cause to be conducted the administrative functions of the Government of Nepal under this Act or other prevailing law in a prompt and efficient manner. 9. Responsibility of Minister: (1) In addition to the responsibilities mentioned in the Constitution and other prevailing law, the overall responsibility for performing or causing to be performed all necessary functions in a timely manner, including policy matters relating to functions performed by the ministry under his/her charge, shall be of the concerned Minister.

(2) Without prejudice to the generality of sub-section (1), the concerned Minister may give necessary instructions to the employees of his/her ministry and its subordinate bodies, and it shall be the duty of the concerned employee to comply with such instructions within the set time. 10.

Chief Secretary and His/Her Responsibility: (1) The Chief Secretary shall be the principal administrative officer of the Government of Nepal and shall bear his/her responsibility in that capacity. (2) Without prejudice to the generality of sub-section (1), in addition to the functions, duties and powers provided in this Act or other prevailing law, the functions, duties, powers and responsibilities of the Chief Secretary shall be as follows:- (a) Subject to the supervision and direction of the Prime Minister, to perform or cause to be performed the functions of the Office of the Prime Minister and Council of Ministers as the administrative head of that office, (b) In the capacity of the supervisor of the Secretaries and other officers of the special class of the Government of Nepal, to supervise the functions performed by them and give necessary directions regarding the administrative functions to be performed by the Secretary, (c) To coordinate or cause to be coordinated the administrative work and activities of various ministries and other concerned bodies, (d) To coordinate

among various ministries and other central bodies to implement or cause to be implemented administrative reforms as an integral part of the public administration, (e) To act as the Secretary of the Council of Ministers and, in that capacity, to certify the decisions of the Council of Ministers, (f) To mobilize or cause to be mobilized the concerned ministries to implement or cause to be implemented the decisions of the Government of Nepal (Council of Ministers) and to supervise the status of implementation of those decisions, (g) To motivate the Secretaries and other employees of the Government of Nepal to make the administration machinery efficient and agile, (h) To convene a meeting of secretaries from time to time to make the work and activities of the Government of Nepal effective and to supervise or cause to be supervised the status of implementation of decisions made in the secretary meeting, (i) To monitor, inspect and supervise or cause to be monitored, inspected and supervised the administrative work and activities of various ministries and offices at the central level, (j) To check whether the proposal submitted by the Secretary for the decision of the Government of Nepal contains necessary matters and to submit the proposal to the Government of Nepal (Council of Ministers) or, if it is found to be incomplete, to return or cause to be returned it to the concerned Secretary, (k) To monitor or cause to be monitored the implementation status of bilateral and multilateral treaties and agreements to which Nepal is a party, (l) To perform or cause to be performed other functions as prescribed. 11.

Responsibility of Secretary: (1) The Secretary shall be the principal administrative officer of the concerned ministry or constitutional body or office at the central level, and in that capacity, he/she shall perform necessary functions to discharge his/her responsibility. (2) Without prejudice to the generality of sub-section (1), in addition to the functions, duties and powers provided in this Act or other prevailing law, the other functions, duties and powers of the Secretary shall be as follows:- (a) To assist the concerned Minister regarding policies to be formulated by the Government of Nepal, (b) Subject to the direction and supervision of the concerned Minister, to perform the functions of the ministry or constitutional body or office at the central level in which he/she is posted, (c) If any improvement is required in policy matters under the ministry or constitutional body or office at the central level in which he/she is posted, to submit a proposal thereof to the concerned Minister, (d) To manage the ministry or constitutional body or office at the central level in which he/she is posted, conduct daily functions, control and supervise employees, (e) To exercise necessary supervision or control over the work and activities of departments, offices or other bodies under the ministry or constitutional body or office at the central level in which he/she is posted, and give directions as necessary, (f) To implement or cause to be implemented policies and programs approved by the Government of Nepal, (g) To submit a report of the work performed each month by the ministry or constitutional body or office at the central level in which he/she is posted and other bodies related thereto to the Office of the Prime Minister and Council of Ministers as prescribed, (h) To prepare the annual program of the ministry or constitutional body or office at the central level and submit it to the Minister, and to implement, monitor and evaluate the approved program as well as conduct progress review or cause to be conducted, (i) To prepare an annual report on the major work and activities performed during the year by the ministry or constitutional body or office at the central level and submit it to the Minister, (j) To transfer, post or depute employees of the ministry or constitutional body or office at the central level in which he/she is posted or of its subordinate bodies up to the class II gazetted level, Provided that the provision relating to transfer of employees working in one ministry or constitutional body or office at the central level or other body or department or office thereunder to another ministry or constitutional body or office at the central level or body or department or office thereunder shall be according to the prevailing law. (k) To nominate employees up to the class II gazetted level on behalf of the Government of Nepal for foreign study, training, study tour or visit abroad in connection with other government work, and approve foreign travel leave, (l) To implement or cause to be

implemented the decisions made by the Government of Nepal (Council of Ministers) relating to the ministry or constitutional body or office at the central level in which he/she is posted, and to supervise the implementation status of such decisions, (m) To implement or cause to be implemented the decisions made in the secretary meeting, (n) To award, on the basis prescribed, an additional up to three grades or a lump sum reward of up to five thousand rupees at one time to an employee performing extremely excellent and commendable work, mentioning the detailed description of the work done by him/her, (o) To inspect from time to time the projects operated by the head of department or project head under the ministry or constitutional body or office at the central level or its subordinate bodies, and give necessary directions, (p) If, during inspection pursuant to clause (n), it is found that the operated projects could not be completed in time or the quality of the completed project is found to be low, to make necessary inquiry and take necessary action against the concerned head of department or project head found at fault, (q) To exercise or cause to be exercised the functions, duties and powers as prescribed. (3) The Secretary shall immediately inform the concerned Minister about the work done pursuant to clauses (j) and (k) of sub-section (2). (4) In respect of the functions mentioned in sub-section (2), the Secretary shall be responsible to the Government of Nepal, and it shall be his/her responsibility and duty to provide updated information on any matter requested by the Government of Nepal relating to the ministry or constitutional body or office at the central level in which he/she is posted.

12. Responsibility of Head of Department: (1) The Head of Department shall be the principal administrative officer of the concerned department, and in that capacity, he/she shall perform necessary functions to discharge his/her responsibility.

(2) Without prejudice to the generality of sub-section (1), in addition to the functions, duties and powers provided in this Act or the prevailing law, the functions, duties and powers of the Head of Department shall be as follows:-

- (a) To perform the functions of the department in which he/she is posted,
- (b) To manage the department in which he/she is posted, conduct daily functions, supervise and control employees under his/her authority,
- (c) To make arrangements to provide fast, efficient and quality services to the general public by continuously improving the work and activities and the working procedures relating to function performance of the department in which he/she is posted and its subordinate offices,
- (d) If any improvement is required in any law or policy implemented by the department in which he/she is posted or its subordinate offices, to submit it to the Secretary with reasons,
- (e) To make arrangements to provide training and capacity building to continuously enhance the level of performance and competence of employees of the department in which he/she is posted and its subordinate offices,
- (f) To submit monthly, annual or other reports as prescribed of the department in which he/she is posted and its subordinate offices to the Secretary,
- (g) To transfer and post employees up to the class III gazetted level under the department in which he/she is posted, and to depute them,
- (h) If any employee of the department in which he/she is posted or its subordinate offices performs extremely excellent and commendable work, to award, on the basis prescribed, an additional up to one grade or a lump

sum reward of up to two thousand rupees at one time to such employee, mentioning the detailed description of the work done by him/her,

(i) To inspect from time to time the projects implemented by any head of office, give necessary directions to be given, and if a project could not be completed on time or the quality of the completed project is not of the prescribed standard, to investigate the matter and, if it is so due to the negligence or fault of the head of office, initiate departmental action against him/her and submit the details of the departmental action so taken to the concerned Secretary,

(j) To exercise or cause to be exercised other functions, duties and powers as prescribed. 13.

Responsibility of Head of Office: In addition to the functions, duties and powers mentioned in the prevailing law, the other functions, duties and powers of the Head of Office shall be as follows:- (a) To manage the office in which he/she is posted, conduct daily functions, supervise and control employees working in that office, (b) To depute employees of the office in which he/she is posted and its subordinate offices, (c) To transfer non-gazetted employees of the office in which he/she is posted and subordinate offices from one office to another, (d) To recommend to the Head of Department, with detailed description of the work done, for grade addition or cash reward for an employee of his/her office who performs extremely excellent and commendable work, (e) To cause the work of projects operated under the office in which he/she is posted to be completed within a specified time, (f) To make effective the services provided to the public by the office in which he/she is posted, (g) To exercise or cause to be exercised other functions, duties and powers as prescribed. Added by the Act to Amend Some Nepal Acts to Make Conformable to the Constitution of Nepal, 2075.13A. Conduct and Responsibility of Administrative Functions of Province and Local Level: Matters relating to the administrative functions and responsibilities to be conducted by the province or local level, and the procedures to be adopted while performing administrative functions, shall be as provided in the provincial or local law. Chapter-4 Procedure to be Adopted while Performing Administrative Functions 14. Specific Procedure to be Adopted: An official authorized to make a decision under this Act or other prevailing law shall, while making a decision on any matter, adopt the procedure provided in the prevailing law if such a procedure is provided, and if no such provision is made, adopt an appropriate procedure considering the nature of the matter to be decided. 15.

Decision to be Made within a Certain Time Limit: (1) An official authorized to make a decision under this Act or other prevailing law shall, while making a decision on any matter, make the decision within the time limit specified in the prevailing law if a specific time limit is provided therein, and if no such provision is made, amended by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081.within seven working days from the date of receipt of the information, evidence or documents relating to the matter to be decided. (2) If it is not possible to make a decision within the period under sub-section (1) due to non-availability of necessary facts, information or evidence, the official authorized to make the decision shall make a decision stating the reason thereof. (3) If a decision is made stating reasons pursuant to sub-section (2), the official authorized to make the decision shall inform the official one level above him/her as soon as possible. Added by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081.(4) An official who fails to make a decision under this section, or who avoids deciding a matter that he/she ought to decide, may be warned by the following authority:- (a) By the Head of Office for an employee of the office, (b) By the Head of Department for the Head of Office, (c) By the Secretary of the concerned ministry or central body for the Head of Department, (d) By the Chief Secretary for the Secretary. Added by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081.(5) Notwithstanding anything contained in

sub-section (4), if the official to be warned and the official giving the warning are of the same level or class, the warning shall be given by an official one level above, and for an official who is not subject to departmental punishment, the appointing authority may ask for an explanation. Added by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081.(6) A record of the warning given under sub-sections (4) and (5) shall be maintained, and while evaluating the performance of the employee who is an official who has received such warning, the concerned supervisor and reviewer shall also take such record into consideration. 16. Transparency to be Maintained while Making Decision: (1) An official authorized to make a decision under this Act or other prevailing law shall make a decision on any matter in a transparent manner.

Explanation: For the purposes of this Act, "transparency" means a process of making decisions on the basis of certain criteria, and said word shall not adversely affect matters required to be kept confidential under the prevailing law. (2) To maintain transparency under sub-section (1), the official making the decision may give due consideration to the opinions and advice of his/her subordinate employees regarding the matter to be decided. (3) If the proceedings of a matter to be decided commence at one level and the decision is to be made at another level, the official involved at each level shall submit his/her clear opinion along with findings on that matter to the official authorized to make the decision. (4) If any question is found to have arisen in the opinion submitted by the official involved at each level in the decision-making process under sub-section (3), the official making the decision shall also address such question while making the decision. (5) If, while making a decision, a legal or technical question is also to be resolved, the official making the decision may, if deemed reasonable, seek the opinion of a legal expert or technical expert on such matter. (6) If an opinion is sought under sub-section (5), a decision may be made based on such opinion as well, and if it is deemed not necessary to follow such opinion, a decision shall be made stating the reason thereof. (7) Other provisions relating to transparency shall be as prescribed. 17. Basis and Reason for Decision to be Stated: While making a decision under this Act or other prevailing law, the concerned official shall make the decision stating the clear basis and reason on which the decision is based and why such decision had to be made. 18. Decision Not to be Made in Case of Conflict of Interest: (1) An official authorized to make a decision under this Act or other prevailing law shall not make a decision on any matter in which he/she has a direct interest, concern or self-interest, or if the decision made by him/her would directly affect a person entitled to inherit from him/her or other close relatives, or if there is a conflict of interest such that a person of his/her close circle directly benefits from a business or occupation operated by him/her.

Explanation: For the purposes of this sub-section, a decision made by an official authorized to make a decision for the broader public interest shall not be deemed to be a conflict of interest.

(2) If, due to the situation under sub-section (1), the official authorized to make a decision cannot make the decision, he/she shall, stating the reason thereof, cause the decision on that matter to be made by an official of equal rank, if available in the same office, or if not, by an official one level above him/her.

(3) If the official under sub-section (2) is not available in the concerned office, or if available but due to the situation under sub-section (1) he/she cannot make the decision, then if the official authorized to make the decision is the Secretary, the matter shall be submitted to the Chief Secretary, and if it is another official, it shall be submitted to the official one level above, and the decision shall be made or caused to be made as per the resolution. Provided that if the Chief Secretary is the official authorized to make the decision, the matter shall be submitted to the Government of Nepal (Council of Ministers).

(4) An officer working in a body that formulates policy for a sector or sub-sector or implements law, or in a

regulatory body that regulates any sector or sub-sector, shall not, while holding office, and after retiring from such office for any reason whatsoever, for at least one year, directly or indirectly engage in any non-governmental or private level under the same sector or sub-sector relating to a decision made by him/her while holding office, in producing any goods or services, carrying on any business, or in the management of any firm, company or other establishment producing such goods or services. Explanation: For the purposes of this sub-section, in the case of a person who has held office in more than one body, it means the period of the last two years prior to retirement from service.

(5) If a person who acts contrary to this section is a person currently in service, he/she shall be subject to departmental action according to law on that basis, and if a person has retired from service, the Secretary of the concerned ministry may order a fine of up to ten thousand rupees.

(6) A person dissatisfied with the order under sub-section (5) may appeal to the concerned Appellate Court within thirty-five days.

(7) Any act done by an official currently in service contrary to this section shall be automatically void. 19.

Performance Contract may be Entered into: (1) If any work to be performed by the Government of Nepal is required to be completed within a specified period (performance contract) or to be performed so as to achieve a specified quantity of output, or if any program or project prioritized from the national perspective of the Government of Nepal is to be implemented, the responsibility for performing such work may be given to any official by entering into a performance contract with him/her. (2) The contract under sub-section (1) shall, in addition to other matters, state the description of work to be done by the official given the responsibility, the time limit for completing the performance of work, and the quality or quantity of performance. (3) If a contract is made under sub-section (1), the person given the responsibility under such contract shall perform the work according to such contract. (4) If, due to any circumstances beyond control, the work to be performed under sub-section (3) cannot be completed within the period in which it is to be performed, a detailed statement with reasons thereof shall be submitted to the Secretary of the concerned ministry. (5) If the details submitted under sub-section (4) appear reasonable, the performance contract may be amended to perform the work within an additional period, deducting the period during which work could not be done due to circumstances beyond control. (6) An official who, without reasonable cause, fails to perform the work within the period under sub-section (3) or (5) shall be subject to departmental action. (7) If the Government of Nepal suffers any loss or damage, or if the project cost increases, due to the failure of the person given the responsibility under this section to perform the work with mala fide intention or due to negligence or carelessness, compensation for such loss or damage or the increased cost may be recovered from him/her as prescribed. (8) Other provisions relating to the performance contract shall be as prescribed. 20. Consultation may be held with Stakeholders and Civil Society while Implementing Matters of Public Interest: (1) The Government of Nepal may, as necessary, hold necessary consultation with stakeholders and civil society before implementing any matter of public interest. (2) While holding consultation under sub-section (1), a comprehensive analysis of the positive and negative aspects of the matter proposed for implementation shall be made, and an assessment of the potential impact that may result from it shall be carried out. (3) The Government of Nepal shall give due consideration to the suggestions received from consultation with stakeholders and civil society under sub-section (1) or (2) while implementing a matter of public interest.

Explanation: For the purposes of this section, "matter of public interest" means any of the following matters:

(a) Any matter that establishes a fundamentally new system or fundamentally abolishes an existing system,



(b) Any matter relating to operating a development program or project of public importance, or

(c) Other matters as prescribed. 21. Responsibility Not to be Shirked: (1) An official required to perform functions under this Act or the prevailing law shall perform the work assigned to him/her or the work he/she is required to perform under this Act or the prevailing law within the specified conditions and specified time limit.

(2) An official required to perform functions under sub-section (1) shall not, except in the situation under section 22, shirk his/her responsibility or cause someone else to do the work he/she is supposed to do.

(3) An official who, contrary to sub-section (2), causes others to do work, or shirks responsibility in any other manner, or fails to perform the work within the specified time limit with mala fide intention to shirk responsibility, or fails to achieve the output according to the performance indicator, may be warned by the Government of Nepal (Council of Ministers) if he/she is the Chief Secretary, by the amended by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081.Chief Secretary if he/she is a Secretary, by the concerned Secretary if he/she is an official under a ministry or a Head of Department, and by the concerned Head of Department if he/she is another official under a department.

(4) If, despite the warning under sub-section (3), the conduct and work of such official does not improve, departmental action shall be taken against such official under the prevailing law on the ground of lack of capability. 22. Delegation of Authority may be Made: (1) Notwithstanding anything contained elsewhere in this Act, any official may, under the prevailing law, delegate the authority to another official of equal rank or subordinate to him/her to perform the work he/she is required to perform under this Act or the prevailing law. Provided that he/she shall not be deemed to have been relieved of his/her official responsibility merely by reason of such delegation of authority.

(2) The authority delegated under sub-section (1) may be withdrawn at any time.

(3) Notwithstanding anything contained in sub-section (1), authority required to make a decision in a judicial capacity shall not be capable of delegation. 23.

Provision Relating to Official or Professional Conduct: (1) A person holding a public office shall, while holding office or for a prescribed period from the date of retirement for any reason whatsoever, follow the prescribed official or professional conduct. (2) The official or professional conduct required to be followed under sub-section (1) shall be made by the following body or authority for the following officials: (a) By the Judicial Council for judges, (b) By the concerned constitutional body for office bearers of constitutional bodies and employees of such bodies, (c) By the Government of Nepal, Council of Ministers for civil service employees, (d) By the Supreme Court for civil employees working in courts, (e) By the Attorney General for government attorneys and employees working in the office of the government attorney, (f) By the concerned ministry for the heads of organized institutions established under the prevailing law, and by the concerned organized institution for other employees, (g) By the amended by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081.Federal Parliament Secretariat Operation and Management Committee for employees of the amended by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081.Federal Parliament Secretariat, (h) By the prescribed authority for persons holding other public offices except those mentioned in the above clauses. (3) Notwithstanding anything contained in clause (c) of sub-section (2), the Government of Nepal may authorize any ministry or central body or body thereunder to make the official or professional conduct to be followed by employees posted in such ministry or central body or body thereunder, considering the nature of duties to be

performed by such employees. (4) It shall be the duty of the concerned person to follow the official or professional conduct made under this section, and if the person is an employee, he/she shall be subject to departmental action according to the extent of the violation and a record shall be kept; if he/she is another office bearer, the authority making the official or professional conduct for him/her shall keep such record of him/her. (5) Notwithstanding anything contained in sub-section (4), if any act of a person holding a public office of not following or violating his/her official or professional conduct is deemed an offence under the prevailing law, there shall be no bar to taking action against him/her under the law in that regard. Chapter-5 Miscellaneous 24.

Discharge of Official Responsibility: An official having the responsibility to perform functions under this Act or the prevailing law shall, while exercising his/her power or performing his/her duty, pay attention to the following matters:- (a) To initiate oneself to perform the work to be done within the stipulated time, (b) While using government or public resources, to use them in a cost-effective manner ensuring maximum benefit and productivity, (c) To pay attention to the fact that the government or public office is a service-providing institution, the concerned official is a servant of the country, and the general public as a service recipient is a person entitled to receive service, (d) To maintain the sentiment that delay and procrastination in work performance amounts to misuse of resources and means and additional expenditure of the country's resources and means, (e) If, due to any unavoidable reason, it is not possible to perform the work immediately while performing functions, to inform the higher body about it. Provided that if it is a matter of public service or a matter related to a service recipient, such matter shall be displayed on the notice board of the concerned office and, as necessary, made known to the general public through publicity as well. (f) To make the decision oneself on matters falling within one's jurisdiction, and not to seek instructions from a higher body on ordinary matters where there is no legal complexity or ambiguity, (g) A person holding a public office shall, in the course of government or public work, behave courteously with the service recipient in accordance with prevailing values, norms and culture. 25. Citizens' Charter to be Kept: (1) Every government office that provides services to the general public or maintains public relations shall keep a citizens' charter as prescribed in a place visible to all. (2) The citizens' charter under sub-section (1) shall, in addition to other matters, mention the following matters:- (a) The services provided by the concerned office and their nature, (b) The procedure to be fulfilled by the service recipient to receive service, (c) The time limit for providing service, (d) The details of the official providing the service and his/her office room, (e) The details of the fee and other charges, if any, for receiving service, (f) Other matters as prescribed. (3) The matters mentioned in sub-section (1) shall be binding on the concerned office, and it shall be the duty (2) Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018).

A monitoring and evaluation committee at the provincial and district level may be formed as specified.

(3) Each ministry shall have an evaluation and monitoring mechanism as specified to assist the Central Monitoring and Evaluation Committee.

(4) The Secretariat of the Central Monitoring and Evaluation Committee shall be located in the Office of the Prime Minister and Council of Ministers. 39. Disposal of Government Business and Inspection of Government Offices: In addition to the provisions mentioned in this Act or other prevailing laws, other arrangements relating to the disposal of government business and inspection shall be as specified. 40. Facilities to be as Specified: In addition to the facilities provided for in the prevailing law, the facilities that the Chief Secretary, Secretary, Head of Department, or Head of Office is entitled to enjoy in that capacity, and other facilities received for performing work in that capacity, shall be as specified by the Government of Nepal. 41. Annual

Report to be Submitted: (1) Ministries and Departments and other central level government bodies shall, within the period as specified from the date of expiry of each fiscal year, prepare an annual report including the programs conducted, work performed, and the status and progress thereof, along with costs and other necessary matters, and submit such report: in the case of a ministry or central level body, to the Office of the Prime Minister and Council of Ministers; in the case of a department, to the concerned ministry; and in the case of other offices and bodies, to the controlling office. Such report may also be published publicly as necessary after obtaining approval from the higher authority.

(2) In addition to the matters mentioned in sub-section (1), the report pursuant to sub-section (1) shall include details of the reform programs undertaken to establish good governance in the concerned ministry or body or the offices under it, and the results obtained therefrom.

(3) On the basis of the report pursuant to sub-section (1), the Prime Minister shall include notable Amended by the Act to Amend Some Nepal Acts to Make them Consistent with the Constitution of Nepal, 2075 (2018). progress relating to governance reform and good governance in the report pursuant to Article 53 of the Constitution of Nepal and submit it to the Federal Parliament. 42. Performance Indicators: The performance indicators for the work to be performed by any official pursuant to this Act shall be as specified. 43.

Protection of Work Done in Good Faith: No action shall lie against any official performing functions under this Act or prevailing law in respect of any act or proceeding done in good faith by such official while performing his/her functions or conducting administrative work under this Act or prevailing law. 44. Power to Make Rules: The Government of Nepal may make necessary rules to implement the objectives of this Act. 45. Amended by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081 (2024). May Issue Directives: A ministry may, as required, formulate and implement internal directives to conduct work and proceedings in a procedural manner in a swift, efficient, and cost-effective way, or to perform functions. 46. Matters to be According to this Act: Matters provided for in this Act shall be according to this Act, and other matters shall be according to the prevailing law. 47. Effect of Lapse of the Good Governance (Management and Operation) Ordinance, 2062: After the lapse of the Good Governance (Management and Operation) Ordinance, 2062 (2005), unless a contrary intention appears, such lapse shall not? (a) revive anything not in force or existing at the time of the lapse of the Ordinance; (b) affect anything already done or suffered under the Ordinance; (c) affect any right, privilege, obligation, or liability acquired, accrued, or incurred under the Ordinance; (d) affect any penalty, forfeiture, or punishment incurred under the Ordinance; (e) affect any investigation, legal proceeding, or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture, or punishment; and any such legal proceeding or remedy may be instituted, continued, or enforced as if the Ordinance had not lapsed.